TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
APRIL 28, 2025
MINUTES

STAFF REPORT

Present: **Stephen Wood, Chair,** Giles Branch, Megan Stevens, Elliott Barrow, Aaron Butner, Molly Hall (entered at 6:03 pm).
Staff: Chris Swalhah, Eddie Bernard, James Ward, Lynnette Lynes

Mr. Wood called the meeting to order at 6:00 pm.

A. Approval of Agenda

Mr. Branch moved for approval of the agenda. Mr. Butner seconded the motion. All in favor.

B. Approval of Minutes

Mr. Branch moved for approval of the minutes. Mr. Barrow seconded the motion. All in favor.

C. Public Comment
D. General Correspondence

Mr. Quick, 1502 Village Square, spoke regarding the various tree variances and expressed concern that the Town arborist is not at the meetings to provide information and further evidence. He suggested that the Town arborist should be in attendance at all meetings where tree variances are requested.

Ms. Hall entered at this time (6:03 pm).

Mr. Mike Tinkey, 208 Venning, suggested that a certified arborist should be in attendance at every meeting as is done with the City of Charleston. He suggested that this could help in expediting tree variances without needing to defer.

Mr. Mac Jenkinson, 809 Pitt St, abuts the property on McCormick. Mr. Wood stated that this item is on the agenda and Mr. Jenkinson would be able to provide comment when that item is discussed.

There being no further comments, Mr. Wood continued with the agenda.

E. Explanation of Procedures
F. Administration of Oath

▶ Mr. Wood explained the procedures with the public and administered the oath to those speaking.

G. Business

1. Case V-15-22, 805/807 Simmons Street, TMS# 532-05-00-135, Request for an extension of the vested rights period in accordance with §156.049.

▶ Mr. Swalhah reviewed staff comments with the Board.

▶ *Mr. Butner moved for approval of the vested rights extension. Mr. Branch seconded the motion. All in favor.*

2. Case V-06-25, 683 Linns Point, TMS# 559-02-00-233, Request for relief from §156.225(C) to allow the removal of 36'' Historic Live Oak.

▶ Mr. Swalhah reviewed staff comments with the Board.

▶ Mr. James Morrissey, representative of the potential owner, asked to submit information regarding the HOA square footage requirements for homes in the neighborhood.

▶ *Ms. Hall moved for approval for submittal of additional information. Mr. Branch seconded the motion. Motion passed on a 5 to 1 vote with Mr. Butner, Mr. Branch, Ms. Stevens, Ms. Hall, and Mr. Wood in favor; Mr. Barrow opposed.*

▶ Mr. Morrissey reviewed the request with the Board.

▶ Ms. Geri Lipps, representative for the owner, read a statement from the owners.

- There being no further comments, Mr. Wood moved to Board questions.

- Mr. Wood closed public comment.

- *Mr. Branch moved for approval of the request with the with the findings that the applicant has clearly met the criteria as indicated in his responses on his application; given the number of trees on the lot and the buildable area that must be provided to meet the HOA requirements; the tree is determined to be in poor condition, with limbs that would impede the construction of a home; if the tree were not removed, the property would not be able to utilized, and removal of the tree would not be a detriment given the number of remaining trees. Mr. Butner seconded the motion. Motion passed on a 4 to 1 vote with Mr. Butner, Mr. Branch, Ms. Hall and Mr. Wood in favor; Mr. Barrow opposed, and Ms. Stevens abstaining.*

3. Case V-07-25, 1248 Waterfront Drive, TMS# 558-10-00-062, Request for relief from §156.225(C) to allow the removal of a 41.5'' Historic Live Oak.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Jerry Bulcher, owner, reviewed the request with the Board. He asked to submit additional information for the Board to review including additional information from the arborist.

- *Mr. Branch moved for approval for submittal of additional information including additional information from the arborist. Ms. Stevens seconded the motion. Motion passed on a 5 to 1 vote with Mr. Butner, Mr. Branch, Ms. Stevens, Ms. Hall, and Mr. Wood in favor; Mr. Barrow opposed.*

Mr. Bulcher reviewed the request with the Board.

- Ms. Michele Stress, 545 Veranda View, suggested that the removal of the tree would impact the community and the future citizens of the Town.

- Mr. David Quick, 1502 Village Square, stated that he is opposed to the removal of the tree. He suggested that if allowed to be removed, there should be mitigation required to help maintain the tree canopy of the lot. He stated that tree removal does affect others in the community.

- Mr. Charles McCarter, 3005 Haswell, stated that Ms. Hunter, tree arborist is a certified arborist and TRAQ certified as well. He stated that the addendum speaks to the risk and hazard of the tree.

- Mr. Eddie Bernard, Town arborist, stated that he recently assessed the tree and reviewed his assessment with the Board. He provided photographs for the Board to review.

- *Mr. Branch moved for approval for submittal of additional photos. Mr. Butner seconded the motion. All in favor.*

- There being no further comments, Mr. Wood moved to Board questions.

- Mr. Wood asked for rebuttal from the applicant.

Mr. Bulcher referenced the arborist addendum regarding the chestnut disease and suggested that the tree is declining. He also suggested that there have been conflicting recommendations regarding how much can be pruned. He suggested that the tree is dying, and they should be able to remove the tree to prevent damage to his home and the neighbor's home.

- Mr. Bernard stated that the left side shows that the cycle of growth is "off". He stated that the number of acorns a tree produces can vary from year to year. re are number of acorns and the chestnut blight is

- Mr. Wood closed public comment.

- *Mr. Barrow moved for denial based on the findings that there are no extraordinary conditions to the property as other properties have oak trees, there is conflicting evidence regarding the condition and health of the tree and there is no evidence that the tree is in danger of falling, the conditions do apply to areas in the vicinity as there are other properties with trees on them, there is no hindrance of the utilization of the property if the variance is denied, and there would be a detriment to the neighborhood because removal of the tree would decrease the tree canopy that provides photosynthesis. Ms. Hall seconded the motion. Motion failed on a 3 to 3 vote with Mr. Barrow, Ms. Hall and Mr. Wood in favor; Mr. Butner, Mr. Branch, and Ms. Stevens opposed.*

The Board deliberated on the merits of the case to determine if a final decision could be reached.

- Mr. Barrow moved for denial based on the findings stated in his previous motion. Ms. Hall seconded the motion. Motion failed on a 3 to 3 vote with Mr. Barrow, Ms. Hall, and Mr. Wood in favor; Mr. Butner, Mr. Branch, and Ms. Stevens opposed.

- Mr. Ward stated that due to the tie vote, with no disposition, the item would be reheard at the next meeting.

4. Case V-09-25, 675 Adluh, TMS# 562-02-00-102, Request for relief from §156.225(C) to allow the removal of two Historic Cedar Trees.

This item was withdrawn by the applicant.

5. Case V-10-25, 562 Flambeau Retreat, TMS# 558-10-00-062, Request for relief from §156.303(Table) to allow a 3.1-foot encroachment into the front setback.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. John Slester, owner, reviewed the request with the Board.

- There being no comments, Mr. Wood closed public comment.

- *Mr. Branch moved for approval based on the findings that all the requirements for a variance have been met and based on the findings that it was previously approved by the Town. Ms. Stevens seconded the motion. All in favor.*

6. Case V-11-25, 0 McCormick Street, TMS# 532-09-00-030, Request for relief from §156.225(C) and §156.227(A) to allow the removal of a 27'' Live Oak and to encroach within the tree protection zone of a 54'' Hackberry.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Joel Adrian, architect, reviewed the request with the Board.

- Mr. Mike Tinkey, 208 Venning, stated that he is in favor of the preservation of the oak tree.

- Mr. Branden Chin, 753 Pitt, suggested that allowing the removal would set a bad precedent and that it could mean property could be subdivided to remove trees. He suggested that this would increase the number of homes on the street. He stated that the trees provide shade and protection from the winds off the river and provide stormwater runoff protection. He suggested that allowing removal of the trees would be detrimental as it would mean less help from trees for stormwater.

- Ms. Rachel Oso, 1470 Goblet, stated that she is the buyer of the property, and she would like the live oak to remain. She asked that the hackberry be allowed to be removed to build a modest home on the property. She stated that the property has already been subdivided and she is only asking to be able to build the home. She expressed concern that the property is currently being utilized for extra parking, and collection of debris.

- Ms. Meghan Gravitt, 223 Center, expressed concern with removal of the oak tree. She suggested that the trees should not be allowed to be removed to protect the tree canopy within the Town.

- Mr. William Zucko, 801 Pitt St, asked that the character of the Old Village should be maintained, and any development would impact their property.

- Mr. Mac Jenkinson, 809 Pitt, stated that his property is to the rear of this property. He suggested that the property is currently being cleaned up. He suggested that the trees have good canopy and are a part of the character of the neighborhood. He suggested that the character of the neighborhood should be preserved.

- Ms. Stephanie Beals, 202 Middle St, stated that she is opposed to the removal of trees and asked that the character of the neighborhood is preserved.

Ms. Michele Stress, 545 Veranda View, suggested that the charm and character of the Old Village should be preserved.

Mr. Adrian provided a rebuttal and stated that if the existing tree protection are vested would mean that the live oak would be preserved. He stated that they would like to preserve the hackberry tree as well, while being allowed to encroach into the tree protection zone. He stated that he and his client did not subdivide the property. He stated that they are intending to abide by the HDPC guidelines regarding development of the property and building the home.

There being no additional comments, Mr. Wood continued with Board questions.

Mr. Wood closed public comment.

Mr. Barrow moved for denial of the removal of the oak tree and for approval of the encroachment into the tree protection zone for the hackberry tree. Mr. Butner seconded the motion. All in favor.

7. Case V-12-25, 727 Spark Street, TMS# 535-04-00-032, Request for relief from §156.111(A)(1) to allow a 1-foot 10 & ¾ inch encroachment into the rear accessory setback.

Mr. Swalhah reviewed staff comments with the Board. He clarified that the total encroachment based on the survey is 7 inches.

Mr. Kevin King, representative for the owners, reviewed the request with the Board.

There being no comments, Mr. Wood moved to Board questions.

Mr. Wood closed public comment.

Ms. Stevens moved for approval based on the findings that the accessory building was existing on the lot when the property was purchased, the variance is being requested to bring the property into compliance with the current ordinance, it is a unique condition that does not apply to surrounding

properties, if denied, the historic accessory structure on the property would have to be demolished and would restrict the utilization of the property, there is no detriment to the neighborhood as the building has been in existence and established on the property. Ms. Hall seconded the motion. All in favor.

8. Case V-13-25, 813 Harbour Watch Court, TMS# 514-09-00-081, Request for relief from §156.303(Table) and §156.111(A)(1) to allow a 21.3-foot encroachment into rear setback and a 4.2-foot encroachment into the rear accessory setback.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Matt McCauley, representative for the owners, reviewed the request with the Board.

- Mr. Richard Jones, 817 Harbour Watch Court, asked that the request be denied. He suggested that there are no extraordinary conditions. He stated that there is already significant flooding that occurs during high tide. He suggested that building within the marsh would cause additional flooding and if a pool is constructed it would mean spillover of chemicals.

- Ms. Sara Van Nortwick, 817 Harbour Watch Court, stated that she is opposed to the request as well as several of her neighbors. She suggested that there is significant flooding at high tide. She suggested that the building could also cause additional runoff onto neighboring property.

- Mr. Stuart Reeves, owner, stated that he has developed other properties on Harbor Watch. He stated that they have owned the properties for years and are now finally able to develop the lots. He stated that the property lines have not changed since they purchased the property. He stated that the HOA has approved the plan.

- Mr. Wood administered the oath to Mr. Reid.

- Mr. Chris Reid, 825 Fiddlers Point Lane, suggested that the rules and regulations should be upheld. He suggested that wanting to build a larger home should not be justification for a variance.

- Mr. McCauley rebutted that they are not building in the marsh but are asking for encroachment into the setback. He stated that prior to the new critical line being certified, a larger home was proposed. He suggested that the owners have taken care to not encroach into the critical area and work within the confines of the property and the neighborhood. He asked that the Board allow the property to be developed as proposed.

- Mr. Swalhah stated that the Town cannot approve encroachment into the critical line. He stated that the setbacks are measured from the new SCDES-BCM critical line.

- Mr. Ward clarified legal's position on the ownership of marshland and it was determined that the State owns presumptive title to the marshland.

- Mr. Wood closed public comment.

- Mr. Wood re-opened public comment for a question.

- Mr. Wood closed public comment.

- *Mr. Barrow moved for denial based on the findings that there are extraordinary conditions due to the legal determination being applied, the conditions might apply to other properties in the vicinity, but cannot be definitive as the other properties have been developed, denial would not prohibit or unreasonably restrict the utilization of the property as a smaller home could be constructed within applied setbacks, based on the historic flooding, there would be a detriment to the neighborhood and development of the property would potentially cause additional stormwater runoff. Mr. Wood seconded the motion. Motion fails on a 1 to 5 vote with Mr. Barrow in favor; Mr. Butner, Mr. Branch, Ms. Stevens, Ms. Hall and Mr. Wood opposed.*

- *Mr. Branch moved for approval based on the findings that there are extraordinary conditions due to the legal determination being applied, the mean high tide has changed and moved since the time the plat was approved, it is unique as surrounding properties were developed prior to the legal determination being applied to those lots, denial would prohibit the utilization of the property with the new setbacks being applied and the minimum square footage needed to build a home cannot be met with the new setbacks, there is*

not a direct additional impact to the neighbors as the property has historic flooding due to high tide. Ms. Stevens seconded the motion. Motion passed on a 5 to 1 vote with Mr. Butner, Mr. Branch, Ms. Stevens, Ms. Hall, and Mr. Wood in favor; Mr. Barrow opposed.

H. Tree Code Discussion

I. Election of Officers

Mr. Branch moved to defer these items to the next meeting. Mr. Butner seconded the motion. All in favor.

There being no further business, the meeting adjourned at 8:58 pm.

Submitted by,
L. Lynes
BOZA04282025